

Battery & Assault – Fact Patterns

1. Jay and Taylor met during O-week and dated for about a month. Jay then broke up with Taylor and started dating Alex instead. Jay and Alex spend most of their time together and enjoy sitting in the main atrium at Osgoode talking about their torts class and how awesome their professor is.

Taylor still likes Jay and is having trouble accepting that Jay is with Alex now. One day, Jay and Alex are standing in the line-up at the bistro when Taylor walks past and whispers in Alex's ear, "I'm gonna get you for stealing Jay from me." Then Taylor walks away.

(a) Has Taylor committed an assault?

(b) If an assault has been committed:

- i. Could Taylor raise any defences?
- ii. How might damages be assessed?

2. Later that day, Jay and Alex are sitting in the atrium and Taylor walks past. Taylor is reading a textbook in an attempt to finish the readings before class. In response to Taylor's earlier comment, Alex decides to deliberately trip Taylor. Taylor falls over and is not hurt, but as they are dusting themselves off, Alex yells in front of everyone, "that'll teach you, you loser!" Some people look at Taylor and start laughing.

(a) Has Alex committed a battery? An assault? Both?

(b) If a battery and/or assault has been committed:

- i. Could Alex raise any defences?
- ii. How might damages be assessed?

3. Classes are done for the day, and Jay is in the washroom before heading home. Jay is about to leave the washroom when Taylor comes in. Taylor walks toward Jay and says, "I miss you – let's get back together." Jay freezes for a second, then pushes Taylor out of the way and leaves the washroom.

- i. Has Taylor committed an assault? If so, can they raise any defences? How might damages be assessed?
- ii. Has Jay committed a battery? If so, can they raise any defences? How might damages be assessed?